

2.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	DEFENDANTS CANYON ESTATES HOME OWNERS ASSOCIATION, DESERT RESORT MANAGEMENT, INC. DBA ASSOCIA DESERT RESORT MANAGEMENT, NANCY BURKE, MICHAEL WALLACE AND RANDALL WELSH'S DEMURRER TO PLAINTIFFS' THIRD AMENDED COMPLAINT

Tentative Ruling: To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) “[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged. (C.A. v. *William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need on’ly plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Newly added 12th – 14th causes of action:

Granting leave to amend in an order sustaining a demurrer “must be construed as permission to the pleader to amend the cause of action which he pleaded in the pleading to which the demurrer has been sustained.” (*People ex rel. Dept. of Pub. Wks. V. Clausen* (1967) 248 Cal.App.2d 770, 785.) Normally, such leave does not allow the pleader leave to add a new cause of action unless “the new cause of action directly responds to the court’s reason for sustaining the earlier demurrer.” (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015.) The court’s previous leave to amend did not open the opportunity to allege the new causes of action; therefore, they were filed without leave of court.

Uncertainty:

Defendants again demur to the 1st – 7th, and 10th causes of action. A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.)

In ruling on the demurrer to the SAC, as to the 1st – 7th and 10th causes of action, the court found the pleading uncertain as to the five moving Defendants as the entire SAC lumped all five defendants together and identified as HOA Defendants, yet failed to set forth separate factual basis for liability against each. Accordingly, the court sustained the entire SAC as to moving Defendants, with leave to amend. The court’s minute order clearly articulates the deficiency to be addressed in any amendment, yet once again, Plaintiffs lump each of the Defendants together and never set forth allegations as to what each individual is alleged to have done that could support individual liability as to each.

Plaintiffs’ failure to address the court’s explicit prior ruling would support the court sustaining these 8 causes of action without leave to amend. However, the court shall allow one final opportunity to plead separate facts regarding each Defendant that they allege support liability against each individual defendant. The court advises Plaintiffs that no further opportunities to correct this deficiency will be allowed and failure to address the deficiencies will result in the court sustaining without leave to amend.

Demurrer as to the 12th, 13th and 14th Causes of Action SUSTAINED without leave to amend.

Demurrer as to the 1st-7th and 10th Causes of Action SUSTAINED with leave to amend. Plaintiffs to file an amended complaint within 30 days of this order.

Case Management Conference continued to November 9, 2026.